Inspera

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Includes Inspera and Graide, matching the combined spreadsheet entry. Graide Network is a different entry (54).

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

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Competitor website

01 | Website Privacy Notice

https://inspera.com/legal/website-privacy/

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Legal

Website Privacy Notice

Last updated at November 21, 2025 - 11:00 A.M.

1. Introduction

Inspera AS and its subsidiaries (collectively referred to as “Inspera”, “We”, “Us”) are committed to protecting and respecting your right to privacy.

This Privacy Notice explains how Inspera processes personal data as a controller in connection with data collected through our website at https://inspera.com (“Website”), in accordance with applicable data protection and privacy laws.

Our Website is an important communication tool through which we share information about our work, products, and services. We also maintain official pages on social media platforms to engage with our community and provide updates about our activities.

This Privacy Notice applies to any individual whose personal data we collect and process as a controller in connection with their use of our Website or interaction with our social media profiles.

2. Inspera as Controller

This Privacy Notice applies only to Inspera’s processing of personal data where we act as a controller, meaning we determine the purposes and means of the processing.

The purposes for which we act as Controller are as described below. Please note that for much of our business, Inspera acts as a processor on behalf of customers. This Notice does not cover that processing.

3. Personal Data We Collect, Why We Use and How Long We Keep It

“Personal data” means any information relating to an identified or identifiable individual.

We collect and process personal data only to the extent necessary to operate, improve, and communicate about our Website, products, and services.

We retain personal data only for as long as necessary to fulfil the purposes for which it was collected, or to comply with legal, regulatory, or contractual obligations. Retention periods vary depending on the type of data and the context of its collection. At the end of the applicable retention period, personal data will be securely deleted or anonymised so that it can no longer be linked to an identifiable individual.

The table below outlines the main purposes, the related categories of personal data processed when you interact with our Website or social media pages, the lawful basis for processing and the retention periods:

Purpose Categories of Personal Data Lawful Basis for Processing Retention Period

Leads Generation and Prospect Management Name, Email, Location, Professional Data (Job Title), and other information voluntarily submitted in the lead capture form. Your Consent (Article 6(1)(a) GDPR) 2 years following the last meaningful interaction

Contact of Prospects Name, Email address. Your Consent (Article 6(1)(a) GDPR) 2 years following the last meaningful interaction. For successful sales, significant pre-contractual communications are retained for 10 years as part of the customer file.

Email Campaigns for Customers and Prospects Name, Email address. Your consent (Article 6(1)(a) GDPR) or Legitimate Interest (Article 6(1)(f) GDPR). 2 years from the date the campaign was sent, subject to your subscription status or withdrawal of consent.

Website Cookies and Tracking Technologies — to understand how our Website is used and enhance user experience. Online Identifiers (IP address, device ID), Behavioural Data (page views, clicks), Marketing preferences, and Consent Records. Your Consent (Article 6(1)(a) GDPR) for non-essential cookies. Legitimate Interest (Article 6(1)(f) GDPR) for strictly necessary cookies. Varies per cookie type (session to 1 year). Consent records retained for 2 years.

Website operation and maintenance — to ensure proper functionality, performance, and security of the Website.

Technical logs and related data are retained for troubleshooting and security monitoring. Technical Data such as IP address, Browser Information, Cookie IDs, and Usage Data. Legitimate interests in operating a secure and reliable Website (Article 6(1)(f) GDPR) Up to 2 years for general usage data; technical logs retained up to 12 months.

Social media administration — to manage official accounts and engage with users.

We do not store exported personal data beyond what is necessary. Account insights, messages, comments, likes, and profile information shared by you. Joint controllership with platforms based on legitimate interests (Article 6(1)(f) GDPR) As long as the content remains available or until you delete it.

We do not sell or rent your personal data to anyone. Your personal data will only be processed for the purposes listed above or for compatible purposes such as reporting, audits, and analytics, always in line with applicable data protection laws.

4. How We Share Your Personal Data

We may share your personal data with the following categories of recipients:

Inspera group companies (our subsidiaries and affiliates).

Authorised resellers or business partners – for marketing, sales, or support purposes.

Advertisers and advertising networks – to deliver relevant ads in aggregated, non-identifiable form.

Public authorities or other third parties – if required by law, regulation, or court order.

We only share personal data under appropriate contractual safeguards, including data processing agreements where required by applicable data protection law.

5. International Data Transfers

Our Services are global, and your personal data may be processed in any country where we have operations or where we engage service providers. Our Services are located in Norway, Denmark, Sweden, Portugal, United Kingdom, Australia, India, Kosovo, India and the United States of America. Consequently, your personal data may be transferred to a destination outside the country where you are located, which may have data protection rules that are different from those of your country. By submitting your personal data, you acknowledge such transfer, storing or processing of personal data outside your jurisdiction.

We take all steps reasonably necessary to ensure that your data is processed securely and in accordance with this Privacy Notice and applicable laws. This means that Your personal data will only be transferred to a country that provides an adequate level of protection or where We have a valid transfer mechanism in place with the recipient in accordance with applicable law, including through adequacy decisions by the European Commission, or approved transfer mechanisms such as Standard Contractual Clauses or equivalent safeguards.

If you would like to receive more information or a copy of the applicable safeguards, please contact us at privacy@inspera.no.

6. Cookies

We use cookies and similar technologies to make our Website work efficiently and to improve user experience.

“Essential” cookies are necessary for the operation of the Website, while “non-essential” cookies (e.g. for analytics or advertising) are used only with your consent.

For more details about the specific cookies used and how to manage them, please refer to our Cookie Policy.

7. Third Parties & Social Media

We maintain official Inspera pages on social media platforms such as LinkedIn and Twitter (X).

When you interact with us through these platforms, we may receive anonymised insights (e.g. engagement statistics) or any information you choose to share with us (e.g. comments, messages, likes).

For these activities, Inspera may act as a joint controller with the social media platform. You can contact either us or the relevant platform to exercise your privacy rights. However, some requests may need to be handled directly by the platform due to its control over the data.

Our Website may also include links to third-party sites (e.g. partners, advertisers, affiliates). Please note that Inspera is not responsible for the content or privacy practices of those sites. We recommend that you read their respective privacy notices before providing any personal data.

8. Your Privacy Rights

You have several rights as regards the processing of your personal data. Such rights include:

Access to your personal data: as a data subject, you have the right to access to the personal data Inspera keeps about you. e personal data Inspera keeps about you.

Kindly have in mind that this right might be restricted due to protection of other persons' privacy, as well as consideration for our know-how and business secrets;

Correction of your data: if deemed incorrect or incomplete, you have the right to request the rectification of your information;

Erasure: in certain cases, you have the right to request the deletion of your data. These cases are the following:

Processing your personal data is no longer necessary for fulfilling the initial purpose for which it was collected and further processed, and no new lawful purpose exists;

You have withdrawn your consent and we don't have another lawful ground to process your personal data;

You have objected to the processing activity based on Inspera's legitimate interests and we do not have any legitimate ground to keep processing it;

The personal data has been processed unlawfully.

Restriction to processing: you have the right to limit our processing activities in cases in which:

You have disputed the accuracy of your own data and we've taken time to investigate and confirm the accuracy;

Data has been processed unlawfully, but you prefer the suspension of the processing activity over the erasure of personal data;

We no longer need your personal data for the purposes of processing, but you want to keep it due to any legal claim;

We object to the processing activity while we are checking if we have any overriding grounds in relation to an erasure request.

Object to the processing activity: you have the right to request us to stop processing your personal data, namely to any direct marketing initiatives;

Data Portability: You have the right to ask for your personal data to be sent to you or to another controller in a structured and common machine-readable format.

Right to withdraw your consent: as our processing activities described above are based on consent, you have the right to withdraw it at any given time, via the contact provided in point 12.

You also have the right to not be subject to automated decisions (made solely by machines) that affect you, as defined in data protection legislation.

To exercise your rights, please contact us using the details provided below. We will respond as soon as possible, and no later than one month after receiving your request.

You may also have additional rights under your local data protection laws, which we will respect where applicable.

9. Complaints

If You have any complaints about our use of your personal data, please contact us as set out at the end of this Privacy Notice.

You also have the right to lodge a complaint with your local data protection authority.

10. Data Subjects Under the Age of 18

We do not knowingly collect or process personal data relating to children as Controller, for the purposes of processing mentioned above. However, should any parent or guardian be concerned that their child's personal data has been collected by us, please contact us as set out at the end of this Privacy Notice.

For the avoidance of doubt, please note that customers of Inspera may use the Inspera Solutions to collect information relating to children. Where a customer collects such data about children, the customer, not Inspera, is the Controller for such personal data, and is responsible for having proper procedures and parental consent in place. This Privacy Notice does not apply to the processing of such data collected by customers, as it is limited to the use of Inspera's Website.

11. Changes to this Privacy Notice

We may change this Privacy Notice at any given time, whenever deemed necessary. Any changes we make will be made available on this page.

We reserve the right to make changes to our practices and this Data Privacy Notice at any time, so please check back frequently to see any updates or changes to our Privacy Notice.

12. Contact Us

Please feel free to contact us if you have any complaints, questions, or comments concerning our privacy practices, or if you would like to exercise your privacy rights.

Please contact Us to the following email address: privacy@inspera.no.

The same details can be used to contact our Data Protection Officer (DPO).

02 | Privacy

https://www.graide.co.uk/privacy

Webpage text snapshot | Retrieved 10 October 2026

HomeContact

Privacy Policy

This privacy policy sets out how Graide uses and protects personal information with regards to this website and trial platform only.

Full licenced users & clients are subject to bespoke contracts outlining the details and specifics.

We are 6 BIT EDUCATION LTD, (England and Wales Company number 12337063) trading as 6 BIT. This privacy policy sets out how 6 BIT uses and protects personal information. We are committed to ensuring that privacy is protected. We will only use personal data in accordance with this privacy policy and as permitted or required by law. We will review this policy. Any updated versions will be published on our website or otherwise notified. This policy is effective from 17th July 2020.

What we collect

We may collect the following personal data:

1 - Customers, such as schools, colleges, universities and learning providers (and our key contacts) – name and contact details, banking & billing information, credit checking

2 - Suppliers – name and contact details, details around the supply of services by suppliers, banking & billing information, credit checking

3 - Users –

(i) teachers: name and contact details, including e-mail address and

(ii) students: name and contact details, including e-mail address (or parent's e-mail address and name), age and date of birth

4 - Marketing contacts – contact details, details concerning marketing queries

5 - Job applicants – name, contact details, information relating to an application, CV information, references we receive

6 - Data gathered from visits to our website

7 - Personal information provided to us by third parties

8 - Information provided to us by you in the course of subscribing to and using our services

9 - Information we obtain in the course of providing services

What we do with the information we gather

We will use personal data in general terms to (i) provide our customers and users with the 'Replay Marking App' which has been designed to be used in the education sector by teachers and students for marking purposes, (ii) manage our relationships with customers and suppliers and (iii) for administration purposes and to improve the services we offer.

In addition, we may process personal data to:

1 - enable us to provide our services to customers and users

2 - analyse and re-use data in aggregate

3 - present content effectively for a user's computer or device

4 - provide information, products or services that are reasonably requested from us

5 - carry out our obligations, such as account management, customer care, processing subscriptions and monitoring and maintaining the quality and security of our network and services

6 - allow users to benefit from the features of the Replay Marking App according to their subscription rights and allow them to participate in interactive features of our service

7 - notify users about changes to our service

8 - identify fraud or suspicious activity

9 - cross-check against sanctions lists

10 - carry out credit checking

11 - use for legal purposes

The nature of our service is that certain information that we collect will be shared. In particular, we may share the students' names and contact details, including e-mail addresses (and/or parent's names and e-mail addresses and name), age and date of birth with their school, college, university or learning provider through which they are accessing our services. We may contact users of our services by electronic means (e-mail or SMS) with information about products similar to those used by them previously (users can unsubscribe to this). We may also contact individuals by email where they have given consent.

We may share personal data with others under certain circumstances. Examples may include:

1 - our use of third party service providers in relation to our services

2 - sharing your data with your teachers for assessment through the service

3 - in connection with any merger, company asset sale, financing, or acquisition of all or a portion of our business to another company (in which case we may notify relevant individuals)

4 - to the extent that we are required to do so by law, the courts, or our insurers

5 - in connection with any legal proceedings or prospective legal proceedings; and

6 - in order to establish, exercise or defend our legal rights (including providing information to others for the purposes of fraud prevention and reducing credit risk)

How long we keep the information

We only keep personal data where the law allows and no longer than necessary. Relevant factors are:

1 - Whether it is still required for the purpose for which it was collected

2 - Any claims or litigation

3 - Requirements of our insurers

4 - The nature of the personal data and whether special data is included

5 - Any legal obligations we may have to retain it

Security

We are committed to ensuring that information is held securely. To prevent unauthorised access or disclosure, we have put in place suitable physical, electronic and managerial procedures to safeguard and secure the information we collect. We will take reasonable technical and organisational precautions to prevent the loss, misuse or alteration of personal information. Our methods meet the GDPR compliance requirements.

IP addresses and cookies

We may collect information about a user's device, including where available the IP address, operating system and browser type, for system administration and to report aggregate information. This is statistical data about our users' browsing actions and patterns, and does not identify any individual. Cookies are small text files that are placed on devices by websites visited by users. They are widely used in order to allow services to work, or work more efficiently, as well as to provide information to the providers of the service.

These cookies are used to collect information about how visitors use our site. We use the information to compile reports and to help us improve the site. The cookies collect information in an anonymous form, including the number of visitors to the site, where visitors have come to the site from and the pages they visited.

Details on which cookies are used and why are detailed in our cookies policy.

How do I change my cookie settings?

Most devices allow some control of most cookies through the device or browser settings. To find out more about cookies, including how to see what cookies have been set and how to manage and delete them, visit www.aboutcookies.org or www.allaboutcookies.org. Unless you have adjusted your browser setting so that it will refuse cookies, our system will issue cookies when a user logs on to our sites.

Security of personal data

Any individual may instruct us not to process their personal data for marketing purposes by email at any time. (In practice, we will always provide an opportunity to opt-out of the use of personal data for electronic marketing purposes.)

Rights of individuals

Under the General Data Protection Regulation (GDPR) rights of individuals include the following (subject to certain restrictions as permitted by law):

1 - The right to be informed (including the right to request a copy) of any information we hold concerning on them in a clear electronic format (except where disclosing such information would disclose information about another person or certain exceptions apply)

2 - The right of access

3 - The right to rectification

4 - The right to erasure

5 - The right to restrict processing

6 - The right to data portability

7 - The right to object

8 - The right not to be subject to automated decision-making including profiling

Individuals have the right to complain to the ICO (ico.org.uk) if they feel there is a problem with the way we are handling personal data. Where a request is made to delete personal information, we may need to retain certain information for justifiable legal or record keeping purposes and/or for ongoing business matters. We handle subject access requests in accordance with the GDPR.

Third Party Processors

Our carefully selected partners and service providers may process personal information about you on our behalf as described below:

We periodically appoint digital marketing agents to conduct marketing activity on our behalf, such activity may result in the compliant processing of personal information. Our appointed data processors include:

(i)Prospect Global Ltd (trading as Sopro) Reg. UK Co. 09648733. You can contact Sopro and view their privacy policy here: http://sopro.io. Sopro are registered with the ICO Reg: ZA346877 their Data Protection Officer can be emailed at: dpo@sopro.io."

"Digital Marketing Service Providers

Get in touch

Anyone with questions or concerns about this privacy policy or our treatment of personal data, or who is seeking to exercise their legal rights should please write to us by email to takedown@6bit.co.uk or by post to 6 BIT at Unit 48 Birmingham Research Park, Vincent Drive, Birmingham, United Kingdom, B15 2SQ.

03 | Legal Overview

https://inspera.com/legal/

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Legal

Being compliant with local and international law is a minimum requirement for any organisation. Inspera is committed to having documentation, agreements, policies, processes and procedures that ensures compliance with applicable laws and agreements entered into.

In the top navigation bar/ footer navigation menu you will find references to some of important legal information and documents required to ensure that Inspera complies with relevant legislations including privacy and security.

For further information or inquiries please send us your request through the form below.

Contact Us

04 | Website Cookie Policy

https://inspera.com/legal/cookies/

Webpage text snapshot | Retrieved 10 October 2026

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Legal

Website Cookie Policy

Last updated at November 21, 2025 - 10:15 AM

This Cookie Policy explains how Inspera (“we”, “us”, or “our”) uses cookies and similar technologies to recognize you when you visit our website at https://inspera.com (“Website”). It explains what these technologies are, why we use them, and your rights to control their use.

In some cases, we may use cookies to collect personal information, or information that becomes personal information when combined with other data.

What are cookies

Cookies are small data files that are placed on your computer or mobile device when you visit a website. They are widely used to make websites work more efficiently, as well as to provide reporting information.

Cookies set by the website owner (in this case, Inspera) are called first-party cookies. Cookies set by parties other than the website owner are called third-party cookies. These enable third-party features or functionality to be provided on or through the website (e.g. advertising, interactive content, analytics). The parties that set these third-party cookies can recognize your device both when it visits the Inspera website and when it visits certain other websites.

Why do we use cookies

We use both first- and third-party cookies for several reasons:

Essential cookies: Required for technical reasons for our Website to operate properly.

Performance and functionality cookies: Enhance the performance and functionality of our Website.

Analytics cookies: Help us understand how our Website is used and to improve it.

Social sharing cookies: Enable you to share content through social media platforms.

Marketing and advertising cookies: Help us provide you with relevant marketing content and measure the effectiveness of our campaigns.

Third parties may serve cookies through our Website for analytics, advertising, and other purposes as described below.

Which cookies we use and why

The table below explains the cookies we use and why we use each of them.

Type of Cookies Description

Essential These cookies are strictly necessary for the Website to function and cannot be switched off in our systems. They are usually only set in response to actions made by you which amount to a request for services, such as setting your privacy preferences, logging in, or filling in forms.

Performance and functionality These cookies improve the performance and functionality of our Website but are not essential to its use. Without them, some features may not be available.

Analytics We use Inspera and third-party analytics cookies (such as Google Analytics) to collect information about how visitors use our Website. This helps us improve performance and user experience. The information is collected anonymously. If you do not allow these cookies, your visit will not be included in our statistics. You can read the full Google Analytics privacy policy at: http://www.google.com/policies/privacy/.

Social sharing We use social media buttons and cookies (e.g. X, LinkedIn, Youtube, Pinterest) that allow you to share content if you are logged in to those services. These companies may recognize you, collect information about your visit, and set cookies. Your interactions are subject to their privacy and cookie policies. Please read their privacy statements and cookie policies to understand how they use your information.

Marketing and advertising We use third-party cookies (e.g. HubSpot, Google Ads, LinkedIn Campaign Manager, Twitter Ads) to recognize you when you return to our Website and to understand your interests. If you submit your details (e.g. via a form), we may link this to cookie data to personalize your experience. These third parties may also show you Inspera ads on their platforms based on your previous interactions with our Website.

List of placed cookies

Name Expiration Period Function

_ga_* 1 year 1 month 4 days Google Analytics sets this cookie to store and count page views.

_ga 1 year 1 month 4 days Google Analytics sets this cookie to calculate visitor, session and campaign data and track site usage. The cookie stores information anonymously and assigns a randomly generated number to recognise unique visitors.

_gcl_au 3 months Google Tag Manager sets the cookie to experiment advertisement efficiency of websites using their services.

personalization_id 1 year 1 month 4 days Twitter, sets this cookie to integrate and share features for social media and also store information about how the user uses the website, for tracking and targeting.

li_sugr 3 months LinkedIn sets this cookie to collect user behaviour data to optimise the website and make advertisements on the website more relevant.

bcookie 1 year LinkedIn sets this cookie from LinkedIn share buttons and ad tags to recognize browser IDs.

lidc 1 day LinkedIn sets the lidc cookie to facilitate data center selection.

muc_ads 1 year 1 month 4 days Twitter sets this cookie to collect user behaviour and interaction data to optimize the website.

li_gc 6 months Linkedin set this cookie for storing visitor’s consent regarding using cookies for non-essential purposes.

_gid 1 day Google Analytics sets this cookie to store information on how visitors use a website while also creating an analytics report of the website’s performance. Some of the collected data includes the number of visitors, their source, and the pages they visit anonymously.

_gat_UA-* Session Google Analytics sets this cookie for user behaviour tracking.

test_cookie 15 minutes doubleclick.net sets this cookie to determine if the user’s browser supports cookies.

_hjSessionUser_* 1 year Hotjar sets this cookie to ensure data from subsequent visits to the same site is attributed to the same user ID, which persists in the Hotjar User ID, which is unique to that site.

_hjFirstSeen 1 hour Hotjar sets this cookie to identify a new user’s first session. It stores the true/false value, indicating whether it was the first time Hotjar saw this user.

_hjSession_* 1 hour Hotjar sets this cookie to provide functions across pages.

_hjAbsoluteSessionInProgress 1 hour Hotjar sets this cookie to detect a user’s first pageview session, which is a True/False flag set by the cookie.

_fbp 3 months Facebook sets this cookie to display advertisements when either on Facebook or on a digital platform powered by Facebook advertising after visiting the website.

__cfruid Session Cloudflare sets this cookie to identify trusted web traffic.

__cf_bm 1 hour Cloudflare set the cookie to support Cloudflare Bot Management.

How can I control Cookies

You can manage or delete cookies through your browser settings. You can configure your browser to refuse cookies or to prompt you before accepting them. Please note that disabling cookies may affect the functionality of our Website.

To find out more about cookies, including how to see what cookies have been set and how to manage and delete them, visit www.aboutcookies.org or www.allaboutcookies.org. To opt-out of being tracked by Google Analytics across all websites visit http://tools.google.com/dlpage/gaoptout.

Updates to This Policy

We may update this Cookie Policy from time to time to reflect changes in the cookies we use or for other operational, legal, or regulatory reasons. Please revisit this page regularly to stay informed about our use of cookies.

Contact Us

If you have any questions about our use of cookies or other technologies, please contact us at privacy@inspera.com.

05 | Data Sub-Processors

https://inspera.com/legal/dpa/

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Legal

Sub-processors and DPA

Last updated at November 21, 2025 - 10:00 AM

Inspera has Data Processing Agreements, compliant with GDPR as well as other national data protection and privacy regulations, for Inspera Assessment service.

What is a Data Processing Agreement?

A Data Processing Agreement (DPA) between the Data Controller (customer organisation) and the Data Processor (Inspera) regulates how personal data is defined and processed, also covering all data processing by Third Parties.

All hosting, storage and processing of personal data on Inspera Assessment adheres to the General Data Protection Regulation (EU 2016/679) (“GDPR”).

Data Processing Agreements also regulate sharing of personal data. With the exception of sub-processors outlined in the Data Processing Agreement, we don’t disclose personal data to third parties.

Inspera utilises several types of subprocessors. The specific subprocessors utilised depend directly on the particular services each Inspera customer purchases.

Sub-processor Processing Location GDPR Transfer Mechanism

Inspera AB

c/o BDO Skatteavdelningen, Box 6343, 102 35

Stockholm,

Sweden Sweden n/a

Inspera ApS

Inge Lehmanns gade 10, 7.

8000 Aarhus C.

Denmark Denmark n/a

Inspera UK Ltd.

3rd Floor, 1 Ashley Road,

Altrincham, Cheshire,

WA14 2DT,

England UK Adequacy

Decision

Inspera Australia PTY Ltd.

c/o BDO, Parkline Place, Level 25 252 Pitt Street, NSW 2000 Sydney,

Australia Australia Standard

Contractual

Clauses

Inspera USA, Inc.

110 N. Wacker Drive, Suite 2500, Chicago, IL, 60606,

USA USA Standard

Contractual

Clauses

Inspera Portugal Unipessoal, Lda.

Avenida da República, n.º 50, 1050-196 Lisbon,

Portugal Portugal n/a

Inspera Services India Private Limited

Princeville, EGL, Domlur

We Work Princeville, Domlur, Princeville, Embassy Golf Links Business Park, off Intermediate ring road, Domlur, Bangalore, KA 560071, India India Standard

Contractual

Clauses

Amazon Web Services EMEA SARL

38 Avenue John F. Kennedy L-1855,

Luxembourg

Ireland, Germany and Italy n/a

TrackJS, Inc.

2112 Broadway St NE STE 225 PMB 25, Minneapolis, MN 55413-3081 USA

USA Standard

Contractual

Clauses

Harness Inc.

55 Stockton Street, Floor 8,

San Francisco,

CA 94108,

USA

USA Standard

Contractual

Clauses

Elasticsearch BV

Keizersgracht 281,

1016 ED Amsterdam,

Netherlands

Ireland (IA). Germany (IO).

n/a

Databricks, Inc.

160 Spear St 15th Floor

San Francisco, CA 94105

USA Ireland and USA Standard

Contractual

Clauses (SCCs)

Zendesk Inc.

989 Market St, San Francisco,

CA 94103,

USA Ireland, Germany and USA EU-US Data Privacy Framework and

Standard Contractual Clauses

SA Tech Software India

Private Limited

Off. No. D-6030, 6th Floor, Sr.

No. 207, Solitaire Bus Hub,

Viman Nagar, Pune 411014

India India Standard

Contractual

Clauses (SCCs)

CXG Outsourcing EOOD

25, Petar Dertliev blvd., 1324

Sofia,

Bulgaria Bulgaria n/a

P92 Group UK Limited,

4 Crown Place, London, EC2A 4BT,

United Kingdom United Kingdom and Hungary n/a

Atlassian PTY Ltd.

Level 6, 341 George Street,

Sydney,

NSW 2000,

Australia Ireland, Germany, USA and Australia EU-US Data Privacy Framework and

Standard Contractual Clauses

Google Cloud EMEA Limited

70 Sir John Rogerson’s Quay,

Dublin 2,

Ireland Ireland, Netherlands, Denmark, Finland,

Germany, Belgium and USA EU-US Data Privacy Framework and

Standard Contractual Clauses

Microsoft Corporation

One Microsoft Way, Redmond,

Washington,

98052-6399,

USA Ireland, Netherlands, Norway,

Switzerland, Germany and USA EU-US Data Privacy Framework and

Standard Contractual Clauses

Platforma Akademia SH.P.K

Luan Haradinaj street, Youth and Sports Center, 10000 Prishtinë, Kosovo Kosovo Standard

Contractual

Clauses (SCCs)

Pangram, Inc.

333 Schermerhorn St,

49F Brooklyn, NY

11217, USA EEA (The access to Personal Data by personnel located outside the EEA, including the USA, is not allowed and not possible due to the technical set-up.) N/A

Talview Inc.

400 Concar Dr, San Mateo,

CA 94402,

USA USA Standard

Contractual

Clauses (SCCs)

For more information, please contact privacy@inspera.no.

06 | Product Cookie Policy

https://inspera.com/legal/product-cookies/

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Legal

Product Cookie Policy

Last updated at November 21, 2025 - 10:30 A.M.

We use strictly necessary cookies in our Products to ensure the reliable operation in the live setting.

What are cookies

Cookies are small text files that are placed on the user's computer by websites that you visit. They are widely used in order to make websites work, or work more efficiently, as well as to provide information to the owners of the site or product.

Cookies can be "persistent" or "session" cookies.

We may use persistent cookies or session cookies in our products, as follows:

Persistent Cookies

Persistent cookies remain stored on the user's device for a limited period after the session ends. Within the product, they are used exclusively for technical purposes, such as supporting load balancing and session stickiness across servers (e.g., AWSALB, AWSALBCORS). These cookies are required to ensure the stability and proper functioning of the product.

Session Cookies

Session cookies are temporary and are deleted once the user logs out or the browser is closed. Within the product, they are used to maintain active user sessions (JSESSIONID), to identify the server handling the request (serverid), and to enable the correct display of the interface in the chosen language (i18next). These cookies are necessary for session management, routing of requests, and ensuring a consistent user experience.

Which cookies we use and why

The table below explains the cookies we use and why we use each of them.

Cookie Type Purpose Duration

JSESSIONID Session Maintain user session on the servers. Session

serverid Session Identify the actual server handling the request. Session

AWSALB Persistent

Set by the AWS load balancer.

Handling session stickiness.

1 week

A new value is set on each response.

AWSALBCORS Persistent

Set by the AWS load balancer.

CORS compatible cookie for handling session stickiness

1 week.

A new value is set on each response.

i18next Session Set by 3rd party javascript library i18n. Used for user interface localization purposes. Session

You can set up the browser options to stop the computer accepting cookies or to prompt them before accepting a cookie. If You do not accept the product cookies however, you may not be able to use the product in full, access all features and some features of this product may not work correctly. To ensure the best experience and full functionality of our product, we recommend accepting cookies.

07 | Security Statement

https://inspera.com/legal/security/

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Legal

Security Statement

Last updated at August 06, 2025 - 5:30 PM

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1. Cloud Security Statement

2. Information Security Policy

Cloud Security Statement

Inspera Assessment is a cloud-based Software as a Service (SaaS) solution for educational assessments hosted entirely on Amazon Web Services (AWS). Amazon, which is ISO27001 certified, is responsible for the security of its physical data centres and the AWS cloud. Inspera is responsible for monitoring, managing, and securing the Inspera Assessment Cloud. More information about how Amazon secure AWS can be found here.

Facilities

AWS manages secure data centres that host the Inspera Assessment Cloud. Further information on security can be found here.

All Inspera Assessment Cloud data is hosted within the European Union for technical, security, and privacy reasons.

Certification

Inspera is certified (PDF) as Cyber Essentials Plus according to the UK National Cyber Security Centre (NCSC) certification scheme.

AWS is responsible for managing the security of the cloud service provided. AWS is certified by third-party organisations and operates a number of compliance programmes to comply with applicable laws and regulations. A list of such certifications and compliance statements can be found here.

AWS has a public SOC 3 report on Security, Availability & Confidentiality (PDF) as well as an ISO 27001 certification (PDF).

People and Access

Within Inspera, only a few trusted members of our DevOps Team have access to the production environment for the purposes of maintaining our cloud services and assisting our customers. Additionally, we audit and monitor all access to the Inspera Assessment cloud.

Customers are responsible for maintaining the security of their own login information and permissions.

Data Storage and Retention

Data at rest in the Inspera Assessment cloud is encrypted following the industry standards. Additionally, all communications with the Inspera Assessment cloud are protected with HTTPS using TLS and within the cloud through AWS VPC. Backend services are only available through SSH connections from pre-approved locations through a bastion server.

Inspera Assessment has a multi-tenant model where some components, services, and codebases are shared between customers. Each customer’s data is logically separated from all other customers’ data. This means that each customer can only access their own data.

Data Transfer

Inspera does not transfer data outside the AWS cloud.

Security Tests

Inspera Assessment cloud services are tested regularly by external parties, such as third parties conducting penetration tests and regular audits.

Backup and Disaster Recovery

Assessment data is backed up (at least) once a day and is encrypted following industry standards. Backup lifetime is 7 days and is only used for disaster recovery.

The Inspera DevOps team has a disaster recovery process in place which is tested on a regular basis.

Privacy

Inspera understands the importance of privacy and is committed to protecting your personally identifiable information. The Inspera Assessment is built from the ground up on privacy by design with extensive use of encryption, access control, audit logging and especially pseudonymisation of identities. If an external authentication provider is configured and Single-Sign-On (SSO) is used, Inspera Assessment can be used completely without Inspera knowing the actual identity of test taker.

For more information, please see our privacy notice.

Information Security Policy

At Inspera, we are committed to maintaining the highest standards of information security to protect the data, systems, and digital experiences relied upon by our customers, learners, examiners, and partners. As a leading digital assessment provider, we understand that trust in our platforms depends on the confidentiality, integrity, and availability of the information we manage.

We recognise that information is a critical asset and maintaining its security is essential to earning and preserving the trust of our users, examiners, and employees. Our Information Security Policy governs how we manage and safeguard data across all operations, services, and platforms.

To underpin this commitment, we have established and continue to maintain an Information Security Management System (ISMS) aligned with the requirements of ISO/IEC 27001:2022- the internationally recognised standard for information security management. This provides a systematic and risk-based approach to identifying, managing, and continually improving our information security practices.

Our key commitments include:

1. Protecting Confidentiality, Integrity, and Availability: We ensure that all information assets whether related to learners, content, platforms, or internal systems are protected against unauthorised access, loss, misuse, or compromise.

2. Embedding Security into EdTech services: Security is integrated throughout the lifecycle of our products and services from design and development through to delivery and maintenance ensuring safe and trusted learning experience for all users.

3. Access and Identity Management: Strong controls are in place to ensure that only authorised individuals can access our systems and data, based on the principle of least privilege.

4. Security Awareness and Culture: All employees and contractors receive ongoing training and awareness on information security best practices, fostering a strong culture of security within our organisation.

5. Business Continuity and Resilience: Our ISMS includes comprehensive business continuity and incident response capabilities to ensure uninterrupted learning services and timely recovery from any security event.

6. Risk-Based Approach: We proactively identify and manage information security risks, applying proportionate controls to safeguard our technology infrastructure and services.

7. Continuous Improvement and Governance: Our ISMS is regularly reviewed and enhanced through internal audits, external assessments, and a governance structure that ensures accountability at all levels.

At Inspera, we believe that strong information security is essential to delivering fair, reliable, and innovative digital assessment experiences. Through our commitment to ISO/IEC 27001:2022 and a culture of continuous improvement, we ensure that trust and integrity remain at the core of everything we do.

08 | Data Protection Provisions

https://www.graide.co.uk/data-protection-provisions

Webpage text snapshot | Retrieved 10 October 2026

Data Protection Provisions

At Graide, we take data protection seriously. Below are the Data Protection Provisions that govern how we handle personal data when delivering our services, including how our AI models are trained and used. These provisions are designed to ensure full compliance with the UK GDPR and to protect the rights of students, educators, and institutions. The details of this are defined in any data protection terms for a full licence.

We last updated our policy on 15th April 2025.

1. Compliance with Data Protection Laws

1.1. Each party shall comply with all applicable Data Protection Laws in connection with the performance of its obligations and the exercise of its rights under these provisions.

1.2. Without limiting the generality of the above, the parties shall ensure that any Personal Data processed under this provision is handled in accordance with the UK GDPR, the Data Protection Act 2018, and any successor or supplementary legislation.

2. Roles and Responsibilities

2.1. The parties acknowledge that, in respect of the Personal Data shared under these provisions, the Customer shall act as the Controller and 6 Bit shall act as the Processor.

2.2. Each party shall be responsible for ensuring that it has a valid lawful basis for any Processing it undertakes, and that any required notifications to relevant data protection authorities have been made.

3. Instructions and Limitations

3.1. 6 Bit shall process Personal Data only on documented instructions from the Customer and strictly for the Permitted Purpose as set out in the Data Sharing Agreement (In a signed agreement).

3.2. 6 Bit shall not determine the purpose or means of the Processing of Personal Data.

4. AI Model Training and Data Use

4.1. Graide uses AI-assisted grading to suggest feedback based on historical grading inputs from assessors. Each question is associated with its own distinct AI model, trained solely on:

The student response

The feedback given to that specific response

4.2. No personally identifiable information is used in the training of these AI models. All data used for training is anonymised immediately after grading.

4.3. Data used for AI model training is retained:

For the duration of the Customer’s use of the platform

For one additional year after the end of the customer relationship, unless consent is provided for further retention

4.4. Data used to generate real-time feedback suggestions remains under full editorial control of human assessors. No automated decisions are made that produce legal or similarly significant effects on individuals.

5. Security and Confidentiality

5.1. 6 Bit shall implement and maintain appropriate technical and organisational measures to ensure a level of security appropriate to the risk, including protection against unauthorised or unlawful Processing, accidental loss, destruction, or damage of Personal Data.

5.2. 6 Bit shall ensure that all personnel with access to Personal Data are subject to confidentiality obligations and have received appropriate data protection training.

6. Subprocessing

6.1. 6 Bit shall not engage any sub-processor without the prior written consent of the Customer.

6.2. Any sub-processing must be governed by a written contract imposing data protection obligations no less protective than those set out in these provisions and the Data Sharing Agreement.

7. Data Subject Rights and Breach Notification

7.1. 6 Bit shall provide reasonable assistance to the Customer to enable it to respond to any request from a Data Subject exercising their rights under Data Protection Laws.

7.2. In the event of a Personal Data Breach, 6 Bit shall notify the Customer without undue delay and, in any event, within 24 hours of becoming aware of the breach.

8. Audit and Inspection

8.1. Upon reasonable notice, the Customer shall have the right to audit 6 Bit’s compliance with these Data Protection Provisions and the Data Sharing Agreement.

8.2. 6 Bit shall cooperate fully with such audits and provide access to relevant personnel, records, and systems.

9. Data Retention and Return

9.1. Upon termination or expiry of the Agreement, or earlier upon the Customer’s written request, 6 Bit shall securely return or delete all Personal Data processed on the Customer’s behalf, unless required by law to retain such data.

09 | Terms

https://www.graide.co.uk/terms

Webpage text snapshot | Retrieved 10 October 2026

HomeContact

Terms - Graide Trial

These platform terms only apply to uses of the Graide trial application. Full licenced users & clients are subject to bespoke contracts outlining the details and specifics.

App end-user licence agreement.

Please read carefully before using the app

This end-user licence agreement (Terms) is a legal agreement between you (End-user or you) and 6 BIT EDUCATION LTD, a company registered under number 12337063 and whose registered office is at 8 Pendeford Place Pendeford Business Park, Wobaston Road, Wolverhampton, England, WV9 5HD (Licensor, us or we) for 6 BIT REPLAY MARKING PLATFORM (Platform).

We licence use of the Platform to you on the basis of these Platform Terms and subject to any rules or policies applied by (i) any app store (e.g. iTunes or Google Play) (Appstore) where the End-user downloaded the Platform (Appstore Rules) or by (ii) 6 BIT's website, if the Platform is used through 6 BIT's website or by any other authorised website ('Website Terms'). We do not sell the Platform to you. We remain the owners or licensors of the Platform at all times.

Technical requirements

This Platform requires a modern smartphone, functional laptop, tablet or computer, updated to an appropriate recent operating system.

Important notice:

- By downloading the Platform or clicking on the "Accept" button below you agree to the terms of the licence which will bind you. The terms of the licence include, in particular, the privacy policy referred to in clause 1.5 and the limitations on liability in clause 7.

- If you do not agree to the terms of this licence, we will not license the Platform to you so you must uninstall the Platform or not download it.

- The Platform is designed for use for your own guided learning through your school, college, University, or other learning body (Your Institution).

Using the platform

The Platform is a feedback platform designed to be used in the education sector, by educators and students. The Platform learns how educators are marking and giving grades to their students and is enabling them to give feedback to their students through the Platform so that the educators will not have to give the same feedback again for the same question. The Platform will remember both the question and the answer and will automatically give feedback to the students.

The Platform is intended to be used to collect information such as (i) questions from the educators to their students and any type of assessment, (ii) answers from the educators to their students, and other information from your device.

The Platform does not work on a standalone basis and is to be used under a chargeable service and only using user credentials under a valid and current subscription to 6 BIT (BIT Cloud Service). Users don't pay directly to use the Platform, but Your Institution pays us for your subscription which will enable you to have access to the Platform through a unique user and a password. The educators will then be able to assess their students through the Platform, give them feedback and mark their answers.

We may as well show you ads of different products and services from different businesses and organisations, including Your Institution.

The Platform is used to provide data that forms part of the 6 BIT Cloud Service. We cannot guarantee that this data will be accurate, up to date and complete at all times. A number of factors can impact on this such as whether the Device is switched on, network connectivity, data connectivity, network issues, bandwidth, and various other factors. Whilst we are working to provide the best possible service, you should be aware of the potential limitations of this technology.

You may retain or print a copy of these Platform Terms for future reference.

Agreed terms

1. ACKNOWLEDGEMENTS

1.1 These Terms apply to the Platform or any of the services accessible through the Platform (Services), including any updates or supplements to the Platform or any Services, unless they come with separate terms, in which case those terms apply. If any open-source software is included in the Platform or any Services, the terms of an open-source licence may override some of the terms of these Platform Terms.

1.2 We may change these terms at any time by email notification or when you download a new version or upgrade of the Platform. The new terms may be displayed onscreen and you will be deemed to accept them if you continue to use the Platform or the Services.

1.3 From time to time updates to the Platform may be issued through the Appstore or otherwise. Depending on the update, you may not be able to use the Services until you have downloaded the latest version of the Platform and accepted any new terms.

1.4 You will be assumed to have obtained permission from the owners of the mobile telephone, laptop, computers or handheld devices that are controlled, but not owned, by you (Devices) and to download a copy of the Platform onto the Devices and for the Device to be used to collect, send and receive data as required for the Services. You and they may be charged by your and their service providers for internet access on the Devices. You accept responsibility in accordance with the terms of these Terms for the use of the Platform or any Services on or in relation to any Device, whether or not it is owned by you.

1.5 The terms of our privacy policy from time to time, available at www.6bit.co.uk (Privacy Policy) are incorporated into these Platform Terms by reference. By using the Platform or any Services, you acknowledge and agree that internet transmissions are never completely private or secure. You understand that any message or information you send or receive using the Platform or any Services may be read or intercepted by others, even if there is a special notice that a particular transmission is encrypted.

1.6 Services may make use of location and other data sent from the Devices. You can turn off the location functionality at any time by turning off the location services settings for the Platform on the Device, but the Services will not work fully or at all.

1.7 We do not sell your personal data to advertisers, and we do not share information that directly identifies you (such as your name, email address or other contact information) with advertisers unless you give us specific permission.

1.8 You acknowledge that any question, feedback, sketches, drawings, work of any type (‘Content’) that you submit through the Platform are owned by you or Your Institution and by submitting any Content you agree with us using, sub-licensing, reproducing, displaying, performing, modifying, creating derivative works of, distributing, sharing with our collaborators and otherwise use the Content, under a worldwide, irrevocable and perpetual royalty-free licence. You acknowledge that this licence cannot terminate by you or by Your Institution once the Content has been submitted to the Platform or Services.

1.9 You acknowledge that the rights to use the Services arise from the agreement of 6 BIT with Your Institution and that these rights will terminate when the rights of Your Institution terminate.

1.10 Any words following the terms including, include, in particular or for example or any similar phrase shall be construed as illustrative and shall not limit the generality of the related general words.

2. BY USING THE PLATFORM OR ANY OF THE SERVICES, YOU CONSENT TO:

2.1 provide accurate, updated and complete information about you or Your Institution as requested by 6 BIT;

2.2 us collecting the Content that you create and share it within a centralised data which can be accessed by us, our collaborators and any other third parties to whom we may give access to, for the purposes of using the Platform and the Services;

2.3 maintain the confidentiality of the account, the password and any other actions used through the account and not to share them with third parties;

2.4 us using technical information about the Devices and related software and hardware for Services that are internet-based or wireless to improve our products and to provide any Services to you.

3. GRANT AND SCOPE OF LICENCE

3.1 In consideration of you agreeing to the terms of these Platform Terms, we grant you a non transferable, non-exclusive licence to use the Platform on the Devices, subject to these Terms, the Privacy Policy, Website Terms and the Appstore Rules, incorporated into these Platform Terms by reference. We reserve all other rights.

3.2 You may download copies of the Platform onto your Devices for your own personal use of the Services during the course of your learning with Your Institution.

4. LICENCE RESTRICTIONS

In general, we encourage you to download copies of the Platform on Devices for the purpose of accessing the Services, but we do not permit you to use the Platform or the software in the Platform to access or provide a service that is similar to the Services. Except as expressly set out in these Platform Terms or as permitted by any local law, you agree:

(a) not to copy the Platform except where such copying is incidental to normal use of the Platform to use the Services, or where it is necessary for the purpose of back-up or operational security;

(b) not to translate, merge, adapt, vary or modify the Platform;

(c) not to make alterations to, or modifications of, the whole or any part of the Platform, or permit the Platform or any part of it to be combined with, or become incorporated in, any other programs or to use it for services not provided by Us;

(d) not to disassemble, decompile, reverse-engineer or create derivative works based on the whole or any part of the Platform or attempt to do any such thing except to the extent that (by virtue of section 296A of the Copyright, Designs and Patents Act 1988) such actions cannot be prohibited because they are essential for the purpose of achieving inter-operability of the Platform with another software program, and provided that the information obtained by you during such activities:

(i) is used only for the purpose of achieving inter-operability of the Platform with another software program;

(ii) is not unnecessarily disclosed or communicated without our prior written consent to any third party; and

(iii) is not used to create any software that is substantially similar to the Platform;

(e) not to provide or otherwise make available the Platform in whole or in part (including object and source code), in any form to any person other than through the Appstore; and

(f) to comply with all technology control or export laws and regulations that apply to the technology used or supported by the Platform or any Services (Technology),together Licence Restrictions.

5. ACCEPTABLE USE RESTRICTIONS

5.1. You must:

(a) only use the Platform or any Services for collection of data that has a valid and current subscription to the 6 BIT Cloud Service;

(b) not use the Platform or any Services in any unlawful manner, for any unlawful purpose, or in any manner inconsistent with these Platform Terms, or act fraudulently or maliciously, for example, by hacking into or inserting malicious code (‘Viruses’), including viruses, or harmful data, into the Platform, any Service or any operating system;

(c) not infringe our intellectual property rights or those of any third party in relation to your use of the Platform or any Services, including the intellectual property rights over the Content you submit through the Platform or Services (to the extent that such use is not licensed by these Platform Terms);

(d) not transmit any Content that:

(i) contains Viruses;

(ii) is unlawful, harmful, threatening, defamatory, obscene, infringing, harassing or racially or ethnically offensive or otherwise objectionable;

(iii) is in breach of third party intellectual property rights;

(iv) facilitates illegal activity;

(v) depicts sexually explicit images;

(vi) promotes unlawful violence;

(vii) is discriminatory based on race, gender, colour, religious belief, sexual orientation, disability;

(vii) in a manner that is otherwise illegal or causes damage or injury to any person or property; or

(viii) may be in breach of the applicable terms of our third party hosting service provider’s terms;

(e) not use the Platform or any Services in a way that could damage, disable, overburden, impair or compromise our systems or security or interfere with other users;

(f) not create an app, platform or software that seeks to communicate with the Services including using the protocol used by the Platform; and

(g) not collect or harvest any information or data from any Services or our systems or attempt to decipher any transmissions to or from the servers running any Services.

5.2. 6 BIT reserves the right, without liability or prejudice to its other rights to the Customer, to disable the Customer's access to any material that breaches the provisions of clause 5.1. 6 BIT may remove (or require the removal of) Content from the Replay Marking Platform where it reasonably suspects it may be inappropriate Content or as required by law and/or suspend access to any user who breaches clause 5.1.

5.3. If you are aware of any breach of Clause 5.1 or have any concerns of this nature, please contact us at takedown@6bit.co.uk

6. INTELLECTUAL PROPERTY RIGHTS

6.1 You acknowledge that all intellectual property rights in the Platform and the Technology anywhere in the world belong to us or our licensors, that rights in the Platform are licensed (not sold) to you, and that you have no rights in, or to, the Platform or the Technology other than the right to use each of them in accordance with the terms of these Platform Terms.

6.2 You acknowledge that you have no right to have access to the Platform in source-code form.

7. LIMITATION OF LIABILITY

7.1 We only supply the Platform for commercial use. You agree not to use the Platform for resale purposes or for you to supply a service to third parties.

7.2 We do not exclude or limit in any way Our liability for:

(a) death or personal injury caused by Our negligence or the negligence of Our employees, agents or subcontractors;

(b) fraud or fraudulent misrepresentation;

(c) breach of the terms implied by section 2 of the Supply of Goods and Services Act 1982 (title and quiet possession); and

(d) breach of the terms implied by sections 3, 4 and 5 of the Supply of Goods and Services Act 1982 (description, satisfactory quality, fitness for purpose and samples).

7.3 To the extent permitted by law, We have no liability to you for any loss of profit, loss of business, business interruption, or loss of business opportunity.

7.4 You recognise that we may not charge you for the Platform and due to the nature of the Platform (to the extent permitted by law) that we will not be liable to you under or in connection with this Platform (including your use of any Services) whether in contract, tort (including negligence) or otherwise. This does not apply to the types of loss set out in clause 7.2 or our liability to a customer under the applicable Product Licence Agreement.

8. TERMINATION

8.1 We may terminate or suspend these Platform Terms immediately by written notice to you:

(a) if you commit a material breach of these Platform Terms;

(b) if you breach any of the Licence Restrictions or the Acceptable Use Restrictions; or

(c) Your Institution’s subscription for use of the 6 BIT Cloud Service terminates or ends.

8.2 On termination for any reason:

(a) all rights granted to you under these Platform Terms shall cease;

(b) you must immediately cease all activities authorised by these Platform Terms, including your use of any Services;

(c) you must immediately delete or remove the Platform from all Devices, and immediately destroy all copies of the Platform then in your possession, custody or control and certify to us that you have done so;(d) you are on notice that we may notify your company that these Terms have been terminated by us this may permit us (under the terms of our agreement with your company) to terminate that agreement.

9. COMMUNICATION BETWEEN US

9.1 If you wish to contact us then send an e-mail to contact@6bit.co.uk.

9.2 If we have to contact you or give you notice in writing, we may do so by e-mail or through the Services.

10. EVENTS OUTSIDE OUR CONTROL

10.1 We will not be liable or responsible for any failure to perform, or delay in performance of, any of our obligations under these Platform Terms that is caused by any act or event beyond our reasonable control, including failure of public or private telecommunications networks (Event Outside Our Control).

10.2 If an Event Outside Our Control takes place that affects the performance of our obligations under these Platform Terms:

(a) our obligations under these Platform Terms will be suspended and the time for performance of our obligations will be extended for the duration of the Event Outside Our Control; and

(b) we will use our reasonable endeavours to find a solution by which our obligations under these Platform Terms may be performed despite the Event Outside Our Control.

11. OTHER IMPORTANT TERMS

11.1 We may transfer our rights and obligations under these Platform Terms to another organisation, but this will not affect your rights or our obligations under these Platform Terms.

11.2 You may not transfer your rights or obligations under these Platform Terms to another person.

11.3 If we fail to insist that you perform any of your obligations under these Platform Terms, or if we do not enforce our rights against you, or if we delay in doing so, that will not mean that we have waived our rights against you and will not mean that you do not have to comply with those obligations. If we do waive a default by you, we will only do so in writing, and that will not mean that we will automatically waive any later default by you.

11.4 Each of the clauses of these Platform Terms operates separately. If any court or competent authority decides that any of them are unlawful or unenforceable, the remaining clauses will remain in full force and effect.

11.5 Please note that these Platform Terms, its subject matter and its formation, are governed by English law. You and we both agree that the courts of England and Wales will have non-exclusive jurisdiction.